

identified by the defendant can be cured by amendment.” (*Gregory v. Albertson’s, Inc.* (2002) 104 Cal.App.4th 845, 850, internal citations and quotation marks omitted.)

The court notes that this is the first time that it appears that an operative pleading filed by Lu has been subject to a pleading challenge. With this in mind, the court further notes that it is not convinced that there is “no reasonable possibility” Lu can amend the FAC to address issues identified above, particularly as to the third cause of action.

Calendar Line 10

Case Name: *Jaamac v. Yandoc*

Case No.: 26CV485320

On January 26, 2026, plaintiff Maxamuud Jaamac (“Plaintiff”) filed a form complaint against defendant Johnathan Mark Yandoc (“Defendant”), asserting a single cause of action for motor vehicle negligence, and seeking punitive damages. Defendant moves to strike the allegations supporting punitive damages.

The Court agrees with Defendant that the complaint fails to allege facts supporting punitive damages. (See *Jackson v. Johnson* (1992) 5 Cal.App.4th 1350, 1354 (stating that “[s]imple negligence cannot support an award of punitive damages”); see also *Johns-Manville Sales Corp. v. Workers’ Compensation Appeals Bd. (Horenberger)* (1979) 96 Cal.App.3d 923, 931 (stating that “[t]he malice in Civil Code section 3294 is defined as intent to vex, injure, or annoy, or as criminal indifference toward an obligation owed another... [m]ere negligence or recklessness will not suffice”); see also *Palmer v. Ted Stevens Honda* (1987) 193 Cal.App.3d 530, 536 (stating that “[n]either evidence of mere negligence [citations] nor constructive fraud... will support a punitive damages award without a showing of the statutory fraud, malice, or

oppression”); see also *Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894 (stating that “mere negligence, even gross negligence is not sufficient to justify an award of punitive damages”); see also *Dawes v. Super. Ct. (Mardian)* (1980) 111 Cal.App.3d 82, 87 (stating that “the cases have uniformly recognized that proof of negligence, even gross negligence, or recklessness is insufficient to warrant an award of punitive damages”); see also *Ford Motor Co. v. Home Ins. Co.* (1981) 116 Cal.App.3d 374, 380 (stating that “[i]n California, conduct is sufficiently culpable to warrant assessment of punitive damages only if it involves fraud, oppression or malice... [m]ere unintentional carelessness, characterized as negligence or recklessness, is not sufficient”); see also *Krusi v. Bear, Stearns & Co.* (1983) 144 Cal.App.3d 664, 679 (stating “mere negligence, which -- even if gross, or reckless -- cannot justify punitive damages”); see also *Tresemmer v. Barke* (1978) 86 Cal.App.3d 656, 668-669 (stating that “mere negligence, even gross negligence is not sufficient to justify an award of punitive damages... [t]he only form of malice contemplated by section 3294, which creates the right to exemplary damages, is malice in fact... [m]alice in fact denotes ill will, or desire to do harm for the mere satisfaction of doing it... [t]he central spirit of the exemplary damage statute, the demand for evil motive, is violated by an award founded upon recklessness alone”).) Plaintiff cites to *Ching (Yee) v. Dy Foon* (1956) 143 Cal.App.2d 129; however, he concedes that the case is inapposite as it “did not decide punitive damages under Civil Code section 3294.” (Pl.’s opposition to Def.’s motion to strike punitive damages (“Opposition”), p.7:10-11.) Plaintiff does not otherwise cite to any other case to support his argument that the complaint alleges facts supporting the imposition of punitive damages. (See *Utility Consumers’ Action Network v. Public Utilities Commission* (2010) 187 Cal.App.4th 688, 697 (stating that “[t]he parties are required to support their points with argument, any case authority, and record citations”); see also *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830 (stating that “[w]e are not bound to develop appellants’ arguments for them... [t]he absence of cogent legal argument or citation to authority allows this court to treat the contentions as waived”); see also *City of Ontario v. We Buy Houses Any Condition, LLC* (2024) 103 Cal.App.5th 1212, 1223 (stating same); see also *Trinity Risk Management v. Simplified Labor Staffing Solutions* (2021) 59 Cal.App.5th 995, 1008 (stating that

“[w]hen an appellant fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”); see also *Utility Consumers' Action Network, supra*, 187 Cal.App.4th at p. 697 (stating that “[t]he parties are required to support their points with argument, any case authority, and record citations”).)

Accordingly, Defendant’s motion to strike the allegations supporting punitive damages is GRANTED with 10 days leave to amend. Paragraph 11, subparagraph g and paragraph 14, subparagraph a(2) on page 3 of the complaint are hereby stricken.

Defendant shall prepare and submit a proposed final order consistent with this tentative ruling.